

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

YSN IMPORTS INC. D/B/A/ FLAME KING, *Complainant*

v.

FEIGE “PEGGY” OBERLANDER, U SHIPPERS GROUP INC.,
U SHIPPERS GROUP MANAGEMENT CO., INC., *Respondents.*

DOCKET NO. 21-02

Served: August 4, 2021

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge.*

ORDER GRANTING LEAVE TO FILE ANSWER OUT OF TIME AND ADDITIONAL TIME TO FILE JOINT STATUS REPORT

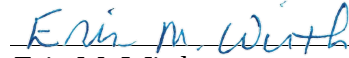
Complainant YSN Imports Inc. d/b/a/ Flame King (“Flame King”) alleges that Respondents Feige “Peggy” Oberlander, U Shippers Group Inc. (“Association”), and U Shippers Group Management Co., Inc. (“Management”) violated the Shipping Act of 1984, as amended (“Shipping Act”). A July 7, 2021, order denying Respondents’ motion to dismiss required the answer to be filed by July 22, 2021.

On July 28, 2021, Respondents filed their answer and a motion for leave to file their answer out of time on the basis of “excusable neglect.” Motion at 1. Complainant opposes the motion, asserting that it should be denied because Respondents were aware when their answer was due and yet did not timely file their answer or move for an extension, and did not confer with opposing counsel regarding moving for additional time as required under the Commission’s Rules. Opposition at 1-2. Complainant also requests an extension for the joint status report with proposed scheduled, from August 6, 2021, to August 26, 2021. Opposition at 3. In response, Respondents submitted a reply together with a declaration, opining that Complainant neither claims nor demonstrates a prejudice should Respondents’ answer be accepted and that there is no basis for a default judgment to be issued. Reply at 1-5. Respondents state that they do not oppose Complainant’s request for additional time to submit the joint status report.

Respondents’ answer will be accepted so that the proceeding may move forward toward a decision on the merits. “The reluctance to decide by default judgments is consistent with the underlying philosophy regarding proceedings before administrative agencies like the Commission. Under this philosophy agencies prefer to decide cases based on evidence rather than on defaults and technicalities.” *Tak Consulting Eng’rs v. Bustani*, 28 S.R.R 581, 583 (ALJ 1998). Although the answer was late, there is no prejudice and the delay was minimal.

An extension of time until August 13, 2021, is granted to file a joint status report with proposed schedule as directed in the order denying the motion to dismiss. The parties are reminded of their duty under Commission Rule 71(a) to confer with each other before filing a non-dispositive motion and to “state within the body of the motion what attempt was made or that the discussion occurred and whether the motion is opposed.” 46 C.F.R. § 502.71(a).

For the above-stated reasons, it is hereby **ORDERED** that Respondents’ motion to submit their answer out of time be **GRANTED**. The parties shall file a joint status report with proposed schedule by August 13, 2021.


Erin M. Wirth
Chief Administrative Law Judge